

24STCV00460 24STCV00460

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SEVA VENTURES, LLC, a California Limited Liability Company; Plaintiff, vs. THE HANDSEL GROUP, LLC, a California Limited Liability Company separately and doing business as The Grove Post-Acute Care Center; and DOES 1 through 50 inclusive; Defendants.

CASE NO: 24STCV00460 [TENTATIVE] ORDER RE: PLAINTIFF SEVA VENTURES, LLC'S MOTION TO REOPEN DISCOVERY BASED ON NEW TRIAL DATE Dept. 731 8:30 a.m. July 21, 2026

Moving Party: Plaintiff, Seva Ventures, LLC

Opposing Party: Defendant The Handsel Group, LLC

Notice: OK

1. Background Facts

Plaintiff Seva Ventures, LLC, sues Defendants The Handsel Group, LLC, Doe 1 Henry Kim, Doe 2 George Vergara, and Does 3 through 50 pursuant to a January 12, 2024, First Amended Complaint alleging various claims arising from Defendants' alleged refusal to comply with the terms of a contractual agreement through which Plaintiff acquired a 70% ownership interest in The Handsel Group, LLC, in lieu of unpaid monies owed by Defendants to Plaintiff.

On June 12, 2026, Plaintiff filed a motion to reopen discovery, which The Handsel Group opposed on July 8, 2026. Plaintiff's motion is now before the Court.

2. Motion to Reopen and Extend Discovery

a. Legal Standard on Motion to Reopen and Extend Discovery

In assessing whether to reopen discovery, courts consider "any matter relevant to the leave requested," including: (1) the necessity and the reasons for the discovery; (2) the diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier; (3) any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party; and (4) the length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action. (Code Civ. Proc., § 2024.050, subd. (b).)

b. Discussion

After review, the Court finds in favor of Plaintiff.

A brief procedural history will assist in illustrating the basis for the Court's determination:

- (1) On January 8, 2024, Plaintiff filed this action;
- (2) On May 25, 2024, the Court set trial for November 17, 2025;
- (3) On June 26, 2025, the Court continued trial to June 15, 2026;
- (4) On August 4, 2025, Plaintiff filed a notice noting a settlement "in principle" between the parties and requesting that the trial and final status conference dates be taken off calendar and set for a case management conference;
- (5) On August 7, 2025, the Court interlineated and thereafter executed the proposed order filed by Plaintiff with the notice of settlement, therethrough taking the trial and final status conference then set in this action off calendar;
- (6) The Court also set an OSC re: Dismissal (Settlement) for October 1, 2025;
- (7) On October 1, 2025, the Court held the OSC and, after conferring with counsel, continued the OSC to December 8, 2025;
- (8) On November 24, 2025, Plaintiff filed a joint response by the parties in relation to the then-upcoming December 8th OSC, in which the parties noted again that they had "agreed, in principle, to a settlement of this case", specifically "by way of Plaintiff's purchase of Defendant";
- (9) On December 8, 2025, the Court held the OSC and, after conferring with counsel, continued the OSC to March 9, 2026;
- (10) On March 6, 2026, Plaintiff filed a substitution of attorney replacing counsel in the action; and
- (11) Just three days later, on March 9, 2026, the Court held the OSC and, after conferring with counsel, set trial in this action for November 15, 2027.

Plaintiff's moving papers add to the record by noting that the parties' settlement agreement broke down sometime after November 24, 2025, and that shortly after substituting in around March 2026, Plaintiff's current counsel discovered the need for additional discovery based on the facts that:

- (1) Previous counsel's discovery efforts were incomplete, but Defendant will have necessarily generated additional discoverable documents in the year since they responded to Plaintiff's first set of Requests for Production (Motion, Kaufman Decl., ¶ 12);

(2) New Plaintiff's counsel attempted to resume discovery around May 19, 2026, and when rebuffed on the ground that discovery was closed, immediately initiated meet and confer efforts to reopen discovery, to which The Handsel Group via counsel refused to stipulate (Motion, Kaufman Decl., ¶¶ 13-15);

(3) Plaintiff's newly served discovery was not duplicative of the first set of discovery (see Motion, Kaufman Decl., ¶¶ 16-18);

(4) Beyond written discovery, Plaintiff intends to take depositions, where prior counsel for Plaintiff only served production requests and failed to serve special interrogatories and to take depositions (Motion, Kaufman Decl., ¶¶ 4, 19); and

(5) This motion was filed immediately after meet and confer efforts failed (Motion, Kaufman Decl., ¶ 20).

The above facts, in juxtaposition to the controlling authority cited above, show a clear basis for relief. There is a necessity for discovery where only a single set of production requests have been served, with no interrogatories or deposition having followed. Plaintiff diligently sought relief via current counsel after negotiations between the parties broke down and Defendant made it clear that it would not stipulate to reopening discovery. Permitting discovery to go forward at this time is unlikely to affect the date of trial, which is set remotely away for November 2027. And given the more than a year between now and trial, and the context of failed negotiations taking nearly a year of the parties' time, the time considerations here at issue do not disfavor relief.

In opposition, Defendant argues that (1) Plaintiff fails to clarify what discovery will in fact be sought if discovery is reopened, (2) Plaintiff failed to act diligently in propounding discovery before the cutoff, (3) Plaintiff has lacked diligence in seeking relief, (4) trial will likely be impacted by heavy discovery to follow the reopening of discovery, (5) Plaintiff will surely seek leave to amend the pleadings to name Doe Defendants, (6) a significant amount of time has elapsed between previously set trial dates and the current trial date, and (7) Plaintiff has acted in bad faith.

The Court is unconvinced by Defendant's arguments. Plaintiff's moving papers are sufficiently clear in specifying that no interrogatories and no depositions were previously served or taken, thus clearly identifying some of the discovery that will be at issue. The Court reads the same facts as Defendant to determine that Plaintiff acted with diligence when considering the parties' failed settlement negotiations. The Court is also not convinced that the November 2027 trial date will be affected by reopening discovery, nor that too much time has elapsed between trial dates or that Plaintiff has acted in bad faith. As for Doe amendments, the place to challenge Doe amendments via LASC form SCLAC CIV 105 is not in papers related to this motion.

Under these circumstances, the Court finds valid grounds to reopen discovery.

c. Conclusion

Plaintiff's motion is accordingly GRANTED.

Trial and trial-related deadlines SHALL run in accordance with the current November 2027 trial date.

Plaintiff Seva Ventures, LLC, is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to

appear remotely.

DATED: July 21, 2026 _____

MARK C. KIM

Judge of the Superior Court